

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	01-08-2026 11:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	01-08-2026 11:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	180 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Ministry Of Home Affairs
विभाग का नाम/Department Name	Central Armed Police Forces
संगठन का नाम/Organisation Name	Border Security Force (bsf)
कार्यालय का नाम/Office Name	Ww Bsf Bhuj
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id :wwbhuj@bsf.nic.in Buyer Email id: knzamal1971@gmail.com
कुल मात्रा/Total Quantity	1
वस्तु श्रेणी /Item Category	Gear Housing Assembly Black counter rotation X-long (1.75) for 250 HP Mercury Sea Pro Outboard Motor
GeMARPTS में खोजी गई स्ट्रिंग्स / Searched Strings used in GeMARPTS	1600-8M0142320 Gear Housing Assy Black Counter Rotation X-Long (1.75) Sea Pro
GeMARPTS में खोजा गया परिणाम / Searched Result generated in GeMARPTS	Category not available on GeM for the text string uploaded by the buyer
अधिसूचना के लिए चयनित प्रासंगिक श्रेणियाँ / Relevant Categories selected for notification	Marine Outboard Motors
बिडर का न्यूनतम औसत वार्षिक टर्नओवर (3 वर्षों का) /Minimum Average Annual Turnover of the bidder (For 3 Years)	6 Lakh (s)
उन्हीं/समान सेवा के लिए अपेक्षित विगत अनुभव के वर्ष/Years of Past Experience Required for same/similar service	3 Year (s)
वर्षों के अनुभव एवं टर्नओवर से एमएसई को छूट प्राप्त है / MSE Relaxation for Years Of Experience and Turnover	Yes Complete
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / Startup Relaxation for Years Of Experience and Turnover	Yes Complete

बिड विवरण/Bid Details	
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Experience Criteria,Past Performance,Bidder Turnover,Certificate (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ में है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	Yes (Documents submitted as part of a clarification or representation during the tender/bid process will also be displayed to other participated bidders after log in)
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	3
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	3
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
विगत प्रदर्शन /Past Performance	30 %
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	Yes
रिवर्स नीलामी योग्यता नियम/RA Qualification Rule	H1-Highest Priced Bid Elimination
बिड का प्रकार/Type of Bid	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	5 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईएमडी राशि/EMD Amount	22720

ईपीबीजी विवरण /ePBG Detail

आवश्यकता/Required	No
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(a). जेम की शर्तों के अनुसार ईएमडी छूट के इच्छुक बिडर को संबंधित केटेगरी के लिए बिड के साथ वैध समर्थित दस्तावेज़ प्रस्तुत करने हैं। एमएसई केटेगरी के अंतर्गत केवल वस्तुओं के लिए विनिर्माता तथा सेवाओं के लिए सेवा प्रदाता ईएमडी से छूट के पात्र हैं। व्यापारियों को इस नीति के दायरे से बाहर रखा गया है।/EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.

(b).ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

(c).ईएमडी और संपादन जमानत राशि लाभार्थी के पक्ष में होनी चाहिए। / Earnest Money Deposit (EMD) shall also be accepted by the buyer in the form of a surety bond.

लाभार्थी /Beneficiary :

DDO WATER WING BSF BHUJ

Ww Bsf Bhuj, Central Armed Police Forces, Border Security Force (BSF), Ministry of Home Affairs
(Kazi Noor Zamal)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई खरीद वरीयता / MII Purchase Preference

एमआईआई खरीद वरीयता / MII Purchase Preference	Yes
मेक इन इंडिया विक्रेताओं को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ तक की सीमा में है / Purchase Preference to MII sellers available upto price within $L1+X\%$	20
मेक इन इंडिया खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Maximum Percentage of Bid quantity for MII purchase preference	50
सार्वजनिक खरीद (मेक-इन-इंडिया को प्राथमिकता) आदेश 2017 के अनुसार केवल क्लास 1/क्लास 2 के स्थानीय आपूर्तिकर्ताओं को ही भागीदारी की अनुमति है दिनांक 16.09.2020 (समय-समय पर संशोधित एवं लागू) / Allow participation only from Class 1/Class 2 local suppliers as per the Public procurement(Preference to Make-in-india) order 2017 date 16.09.2020(as amended and applicable time to time)	Yes, in compliance with the MII ORDER : DPIIT Order(as amended and applicable time to time)

एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15

सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	25
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1. If the bidder is a Micro or Small Enterprise as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Experience Criteria" as defined above subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Experience Criteria, shall upload the supporting documents to prove his eligibility for Relaxation.
2. If the bidder is a Micro or Small Enterprise (MSE) as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Bidder Turnover" as defined above subject to meeting of quality and technical specifications. If the bidder itself is MSE OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover, shall upload the supporting documents to prove his eligibility for Relaxation.
3. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Experience Criteria" as defined above subject to their meeting of quality and technical specifications. The bidder seeking Relaxation from Experience Criteria, shall upload the supporting documents to prove his eligibility for Relaxation.
4. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Bidder Turnover" as defined above subject to their meeting of quality and technical specifications. If the bidder is DPIIT Registered OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover shall upload the supporting documents to prove his eligibility for Relaxation.
5. The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated above in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3-year-old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.
6. Experience Criteria: In respect of the filter applied for experience criteria, the Bidder or its OEM of the product offered in the bid {themselves or through reseller(s)} should have regularly, manufactured and supplied same or similar Category Products to any Central / State Govt Organization / PSU for number of Financial years as indicated above in the bid document before the bid opening date. Copies of relevant contracts and delivery acceptance certificates like CRAC to be submitted along with bid in support of having supplied some quantity during each of the Financial year. In case of bunch bids, the category of primary product having highest value should meet this criterion.
7. Preference to Make In India products (For bids < 200 Crore):Preference shall be given to Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. The minimum local content to qualify as a Class 1 local supplier is denoted in the bid document. If the bidder wants to avail the Purchase preference, the bidder must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which no purchase preference shall be granted. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020. Only Class-I and Class-II Local suppliers as per MII order dated 4.6.2020 will be eligible to bid. Non - Local suppliers as per MII order dated 04.06.2020 are not eligible to participate. However, eligible micro and small enterprises will be allowed to participate .The buyers are advised to refer the OM No.F.1/4/2021-PPD dated 18.05.2023. [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017 and its subsequent Orders/Notifications issued by concerned Ministry .Benefits of MSE will be allowed only if seller/service provider is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.
8. **Purchase preference to Micro and Small Enterprises (MSEs):** Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the

offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1 + 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 25% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

9. Past Performance: The Bidder or its OEM {themselves or through re-seller(s)} should have supplied same or similar Category Products for 30% of bid quantity, in at least one of the last three Financial years before the bid opening date to any Central / State Govt Organization / PSU. Copies of relevant contracts (proving supply of cumulative order quantity in any one financial year) to be submitted along with bid in support of quantity supplied in the relevant Financial year. In case of bunch bids, the category related to primary product having highest bid value should meet this criterion.

10. Reverse Auction would be conducted amongst all the technically qualified bidders except the Highest quoting bidder. The technically qualified Highest Quoting bidder will not be allowed to participate in RA. However, H-1 will also be allowed to participate in RA in following cases:

- If number of technically qualified bidders are only 2 or 3.
- If Buyer has chosen to split the bid amongst N sellers, and H1 bid is coming within N.
- In case Primary product of only one OEM is left in contention for participation in RA on elimination of H-1.
- If L-1 is non-MSE and H-1 is eligible MSE and H-1 price is coming within price band of 15% of Non-MSE L-1
- If L-1 is non-MII and H-1 is eligible MII and H-1 price is coming within price band of 20% of Non-MII L-1

Gear Housing Assembly Black Counter Rotation X-long (1.75) For 250 HP Mercury Sea Pro Outboard Motor (1 Unit)

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

तकनीकी विशिष्टियाँ /Technical Specifications

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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प्रेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Kazi Noor Zamal	370015,HQrs water wing BSF Bhuj, Haripar Road Bhuj	1	30

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

While generating invoice in GeM portal, the seller must upload scanned copy of GST invoice and the

screenshot of GST portal confirming payment of GST.

2. **Generic**

Bidders are advised to check applicable GST on their own before quoting. Buyer will not take any responsibility in this regards. GST reimbursement will be as per actuals or as per applicable rates (whichever is lower), subject to the maximum of quoted GST %.

3. **Buyer Added Bid Specific ATC**

Buyer Added text based ATC clauses

Generic:- OPTION CLAUSE- The purchaser reserves the right to increase or decrease the quantity to be ordered up to 25% of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity by up to 25% of the contracted quantity during the currency of the contract at the contracted rates. Bidders are bound to accept the orders accordingly.

Generic :- -

Generic :- While generating invoice in GeM Portal the seller must upload scanned copy of GST invoice and the screenshot of GST portal confirming payment of GST, Supply shall ensure that the invoice is raised in the name of consignee with GSTIN of Consignee only.

Generic : Bidders shall quote only those product in the bid which are not absolute in the market and has at least 5 years residual market life i.e the offered product shall be declared end-of-life by the OEM before this period. Bidders are advised to check applicable GST on their own before quoting. Buyer will not take any responsibility in this regard. GST reimbursement will be as per actuals or as per applicable rates.

ISO 9001 Certificate : The bidder or the OEM of the offered products must have ISO 9001 certification

Inspection :-

Nominated Inspection Agency: On behalf of the Buyer organization, any one of the following Inspection Agency would be conducting inspection of stores before acceptance : Pre-dispatch Inspection at Seller Premises (applicable only if pre-dispatch inspection clause has been selected in ATC) : MSME or any Central Govt agency inspection charges shall be borne by the seller

Sample Clause : After award of contract- Successful Bidder shall have to get advance sample approved from buyer before bulk manufacturing/starting bulk supplies.

Certificates : The bidder is required to upload, along with the bid, all relevant certificates such as BIS license, type test certificate, approval certificates and other certificates as prescribed in the product specification given in the bid document as per buyers requirement for concerned items.

Buyer Added test based ATC Clauses :-

MSME/Startup or any other entity exempted for EMD, they shall submit bid securing declaration (in lieu of EMD) as per **Appendix-A)** alongwith bid documents failing which their offer shall be rejected during initial scrutiny and after that no representation shall be entertained after opening of the technical GeM Bid. The re-seller/authorized dealers/traders are not exempted for EMD (Bid Securing), Turn over and Experience/Past performance.

APPENDIX - 'A'

(On Firm's Letter head)

GeM Bid No.....

Dated.....

BID SECURING DECLARATION CERTIFICATE.

To,

The Officer Commanding

HQ WW BSF BHUJ

Gujarat

Sir,

Tender/ GeM bid No. _____ dated. _____ We, M/s _____
_____ under take that if we withdraw or modify our bid during the period of validity or we are awarded the contract and we fail to sign the contract or to submit a performance security before the deadline defined in bids documents, we will be suspended for the period of 02 years from being eligible to submit bids for contract with procuring entity i.e. Border Security Force (BSF), Ministry of Home Affairs.

Yours Faithfully,

(Signature of the Authorized Signatory of Bidder with official seal)

a) The bidder seeking EMD exemption must submit the valid supporting documents for the relevant category as per GeM GTC with the Bid. Under MSE/Start-Up category, only manufacturer of the offered primary product are eligible for exemption from EMD.

b) Bid Security (EMD) should be in the form of DD(demand Draft/RTGS/NEFT in favour of DDO Water Wing BSF Bhuj (Gujarat). The seller will upload scanned copy

of Bank Guarantee (EMD) to the online Bid and hard copy must be submitted directly to buyer within 05 days of the Bid opening. If hard copy is not received within 05 day, the bidder offer will be rejected at initial stage and no representation will be considered. Bank details for deposition of EMD as under:- Account No. _____ I FSC Code-SBIN0000334 , State Bank of India Bhuj, DDO Water Wing BSF Bhuj.

(ii)	Consideration of bidder/OEM turnover criteria- The minimum average annual financial Turnover of the bidder/OEM of the offered product during the last 03 years ending on 31st March of the previous financial assessment year i.e 2022-23,2023-24 & 2024-25 will only be considered. In case the date of constitution/incorporation of the OEM is less than 03 years old, the average turnover in respect of the completed financial assessment year after the date of constitution shall be taken into account for these criteria. If the firm don't update the turnover details on the GeM Portal duly verified from ITR from last three assessment financial years the offer shall be rejected.
(iii)	Bid reserved for make in India products :- Bidder to upload certificate regarding percentage of the local content and the details of locations at which the local value addition is made along with their bid as per Appendix-B.
(iv)	Integrity Pact :- As per bid requirement, participated bidder shall have to sign the Integrity pact with the procuring entity as per specified format as per Appendix-C.
(v)	Undertaking certificate for Cartel formation :- Participated bidder is required to submit the undertaking certificate with the bid documents for non-submission of bid through cartel formation as per Appendix-D.
(vi)	Bidder has to submit an undertaking that their firm has never submitted any fake/forged/edited misleading documents in any of the Government department in the last 02 years and their documents have never been found fake/forged/edited/misleading by any Government department in the last 02 years. If the undertaking is found false/manipulative/misleading the firm shall be blacklisted for 02 years from BSF as per Appendix-E.
(vii)	Bidder has to give an undertaking on letter head that their firm has not defaulted in the supply of any contract issued by any Government Department in last 02 years in any consignment. If the undertaking is found false/manipulative/misleading the firm shall be blacklisted for 02 years from BSF as per Appendix-F.
(viii)	Participated firms should submit a self-declaration that the bidder is not under watch list/banned/suspended/blacklisted by any Govt Department as per Appendix-G.
(ix)	Bidder Financial Standing :- The Bidder should not be under liquidation, court receivership or similar proceeding should not be bankrupt. Bidder to upload undertaking to this effect with bid as per Appendix-H.
(x)	Registered Brand : The firm offered bid product on the GeM Portal is required to be registered brand. In this regard, proof of document for registered brand is required to be submitted with the bid documents failing which the offer shall be rejected at initial stage.
(xi)	All participated firms should submit complete Udhyaam Registration certificate alongwith Factory License, Fire Department NOC, Pollution NOC, Latest Industrial Electricity Bill, ESI Registration proof, EPF registration proof etc, for proof of industrial installation failing which their bid shall be rejected.
(xii)	The firm/bidder is required to be submitted the firm PAN Card, GST Registration certificate and proprietor Aadhar Card with the bid document
(xiii)	Lab Test Report :- NA

(xiv)	Disclaimers and rights of procuring entity :- The issue of the bid document does not imply that the procuring entity is bound to select IDs and it reserves the right without assigning any reason to- (a) Reject any or all of the bids OR (b) Cancel the tender process OR (c) Abandon the procurement of the Goods OR (d) Issue another tender for identical or similar Goods (e) Reserve the right to accept or reject bids with any all deviations.
(xv)	Participated firms should also submit certificate (a/w bid docs) in their letter pad that “ Firm has accepted all terms and conditions mentioned in the instant bid”.
(xvi)	Liquidated Damages : In case the firm does not complete the supply within the laid down agreed delivery period as per contract, action will be taken against the firm as per clause 9.7.9, 9.7.10 & 9.7.11 of manual for procurement of goods 2022, MoF.
(xvii)	Risk Purchase Clause :- In the event of failure of supplier to deliver or dispatch of stores to provide the required service within the stipulated dates/period of the supply order/AT or in the event of breach of any of the terms and conditions of the AT, the purchaser will have the right to purchase the subject stores elsewhere at the risk and cost of defaulting supplier after giving a notice to defaulting supplier. The cost as per risk purchase exercise may be recovered from the bills pending with the purchaser even against any other supplies outside this contract or even from the pending bills with any other Govt Department/Ministry. In the event of contract being cancelled for any breach committed and the purchase effecting repurchase of the subject store at the risk and cost of contractor, the purchaser is not bound to accept the lower offer of Benami or allied sister concern of the contractor.
(xviii)	Guarantee/Warranty : NA
(xix)	Make in India (MII) : The bidder must upload certificate from the OEM regarding the percentage of the local content and the details of location at which the local value in addition is made along with their bid.
(xx)	Right to Rejection : Stores will be accepted after inspection and only if they are found up to the standard specification. The decision of the BSF shall be final as to the quantity of the stores and shall be binding upon the tenders and in case of any of the articles supplied not being found as per losses caused to supplies should be Borne by the supplier and ensured by the supplier that articles supplied should be best in quality and free from all defects. The rejected stores must be removed by the tenderer from the consignee's premises within 15 days from the date of intimation about rejection at the risk and cost of the tenderer. The in charge stores concerned will take reasonable view of such materials but in no case shall be responsible for any loss short age damage that may occur to it while is in the premises of the consignee.

(xxi)	Arbitration : The latest General Terms and Conditions on GeM 4.0 (Version 1.7) clause No 16.2 (Arbitration) is as under :- In the event of any conflict/dispute arising out of or in connection with contract placed through GeM, which has not been resolved in accordance with the procedure laid down in Clause 16.1 above, the aggrieved Party may invoke Arbitration by sending a written notice to the other party. The procedure for appointment of the Arbitral Tribunal shall be as follows. (i) In cases where the total value of the Contract is less than INR1,00,00,000/- (Rupees One Crore) only the same shall be referred to a sole arbitrator mutually appointed by both the Parties. (ii) Where the total value of the Contract exceeds INR 1,00,00,000/- (Rupees One Crore) only, the arbitration shall be conducted by a quorum of three arbitrators. Each party shall be entitled to appoint an arbitrator and the two party-appointed arbitrators shall within 30 (thirty) days from their nomination, appoint a third arbitrator i.e the Presiding Arbitrator. (iii) In case of failure to appoint the president Arbitrator within a period of 30 days (thirty) from the date of nomination of the two Arbitrators by the respective parties, the aggrieved party shall approach the High Court(under whose jurisdiction the principle place of business of the Buyer department/organization is located) to appoint the President Arbitrator as per the provisions of the Arbitration and Conciliation Act-1996(as amended upto date). (iv) The Arbitration shall be conducted in the English language. Arbitration proceedings can also be conducted online as per the discretion of the Arbitral Tribunal. (v) The cost of the Arbitration shall be equally borne by both the parties.
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	(vi) The award of the Arbitration shall be final and binding on the Parties to the Contract. The Arbitration shall be governed by the Arbitration and Conciliation Act, 1996, as amended upto date. The seat of arbitration shall be at the place where the principle place of business of the Buyer department/organization is located. (vii) The contract shall be interpreted and governed in all respects in accordance with the laws of India. All disputes in connection with or arising out of the Contract, shall be subject to the exclusive jurisdiction of the Court within the local limits of whose jurisdiction principle place of business of the Buyer department/organization is located.
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(xxii)	Force Majeure Clause:- - If at any time, during the continuance of this contract, the performance in whole or in part by either party of any obligation under this contract shall be prevented or delayed by reason of any war, hostility, acts of public enemy, civil commotion, sabotage, fires, floods, explosions, epidemics, quarantine restrictions, strikes, lockouts or act of God (hereinafter referred to "event") provided, notice of the happening of any such event is given by either party to the other within 21 days from the date of occurring thereof, neither party shall by reason of such event, be entitled to terminate this contract nor shall either party have any claim for damages against the other in respect of such non-performance or delay in performance, and deliveries under the contract. The contract shall be resumed as soon as practicable after such event has come to an end or ceased to exist, and the decision of the Purchaser as to whether the deliveries have been so resumed or not, shall be final and conclusive, provided further that if the performance in whole or part or any obligation under this contract is prevented or delayed by reasons of any such event for a period exceeding 60 days, either party or at its option terminate the contract provided also that if the contract is terminated under this clause, the purchaser shall be at liberty to take over from the contractor at a price to be fixed by the Purchaser, which shall be final all unused, undamaged and acceptable materials, brought out components and stores/service in course of manufacture in the possession of the contractor at the time of such termination or such portion thereof as the purchaser may deem fit excepting such materials, bought out components and stores/service as the contractor or with the concurrence of the purchaser elect to retain.
(xxiii)	CVC Guidelines :- The Indian agent on behalf of the Principal/OEM or Principal/OEM itself can bid but both can't bid simultaneously for the same item/product in the same tender (CVC Circular No 03/01/12 dated 1301.2012 refers).
(xxiv)	Compliance of GFR Rule 144(xi) : The vendor has to submit a certificate of non-compliance to Rule 144(xi) of GFR as per Appendix-J.
(xxv)	Dispute resolution between the buyer and the seller/service provider :- Dispute resolution between the buyer and the seller / service provider 16.1 i. Conciliation: The Parties (i.e., the Buyer and the Seller/ Service Provider) undertake that any conflict or dispute that may arise between them shall first be dealt with in the manner stated below, irrespective of any other recourse, which any Party may have in law or in equity. ii. In the event of any conflict or dispute arising out of or in connection with the General Terms and Conditions on GeM 4.0 (Version 1.12) dt 16th August 2023 Contract placed through GeM, the Parties shall endeavor to settle such disputes amicably. If a dispute is not resolved within 30 (thirty) days after a written notice of any dispute by one Party to the other, the same shall then be resolved through the mechanism of a Dispute Resolution Committee. This Dispute Resolution Committee shall comprise of representatives of both the Buyer and the Seller / Service Provider and shall be chaired by the Primary User of the Buyer organization/department or any other person as authorized by the Primary User. If the Dispute Resolution Committee is not able to resolve the matter within 30(thirty) days of its formation, the dispute shall then be referred to Arbitration. 16.2 Arbitration: In the event of any conflict / dispute arising out of or in connection with the Contract placed through GeM, which has not been resolved in accordance with the procedure laid down in Clause 16.1 above, the aggrieved Party may invoke Arbitration by sending a written notice to the other Party. The procedure for appointment of the Arbitral Tribunal shall be as follows. i. In cases where the total value of the Contract is less than INR 1, 00, 00,000

	/- (Indian Rupees One Crore only) the same shall be referred to a sole arbitrator or mutually appointed by both the Parties. ii. Where the total value of the Contract exceeds INR 1,00,00,000/- (Indian Rupees One Crore only), the arbitration shall be conducted by a quorum of three arbitrators. Each party shall be entitled to appoint an arbitrator and the two party-appointed arbitrators shall within 30 (thirty) days from their nomination, appoint a third arbitrator i.e., the Presiding Arbitrator. iii. In case of failure to appoint the Presiding Arbitrator within a period of 30 (thirty) days from the date of nomination of the two arbitrators by the respective parties, the aggrieved party shall approach the High Court (under whose jurisdiction the principal place of business of the Buyer department/ organization is located) to appoint the Presiding Arbitrator as per the provisions of the Arbitration and Conciliation Act, 1996 (as amended up to date). iv. The arbitration shall be conducted in the English language. Arbitration proceedings can also be conducted online, as per the discretion of the Arbitral Tribunal. v. The cost of the Arbitration shall be equally borne by both the Parties. General Terms and Conditions on GeM 4.0 (Version 1.12) dt 16th August 2023 vi. The award of the arbitrator shall be final and binding on the Parties to the Contract. The arbitration shall be governed by the Arbitration and Conciliation Act, 1996, as amended from time to time. The seat of arbitration shall be at the place where the principal place of business of the Buyer department / organization is located. vii. The Contract shall be interpreted and governed in all respects in accordance with the laws of India. All disputes in connection with or arising out of the Contract, shall be subject to the exclusive jurisdiction of the Court within the local limits of whose jurisdiction principal place of business of the Buyer department / organization is located. 16.3 Both the Parties understand and agree that GeM being an Intermediary cannot be made a party to any dispute in connection with or arising out of the Contract and/or the arbitration proceedings between the Parties. 16.4 Where the arbitral award is for the payment of money, no interest shall be payable on whole or any part of the money for any period till the date on which the award is made.
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APPENDIX - 'A'

(On Firm's Letter head)

-

GeM Bid No.....

Dated.....

BID SECURING DECLARATION CERTIFICATE.

To,

The Inspector General

Ftr HQ BSF

Gujarat

-

Sir,

Tender/ GeM bid No. _____ dated. _____ We, M/s _____ under take that if we withdraw or modify our bid during the period of validity or we are awarded the contract and we fail to sign the contract or to submit a performance security before the deadline defined in bids documents, we will be suspended for the period of 02 years from being eligible to submit bids for contract with procuring entity i.e. Border Security Force (BSF), Ministry of Home Affairs.

Yours Faithfully,

(Signature of the Authorized Signatory of Bidder with official seal)

||
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||

APPENDIX - 'B'.

(On Firm's (OEM) Letter Head)

SELF-CERTIFICATION UNDER PREFERENCE TO "MAKE IN INDIA" POLICY

CERTIFICATE

-
-
-

In line with Government Public Procurement Order No. P-45021/2/2017-BE-II dated. 15.06.2017, as amended from time to time and as applicable on the date of submission of tender, we hereby certify that we M/s _____ are local supplier meeting the requirement of minimum Local content (_____ %) as defined in above orders for the material against GeM bid No _____ dated _____ Details of location at which local value.

Addition will be made is as follows: -----

We also understand, false declarations will be in breach of the Code of Integrity under Rule 175(1) (i)) (h) of the General Financial Rule for which for which a bidder or its successors can be debarred for up to two years as per Rule 151 (iii) of the General Financial Rules along with such other actions as may be permissible under law.

(Signature of the Authorized Signatory of Bidder with official seal)

-

APPENDIX -'C'.

(On Firm's Letter head)

GeM Bid No.....

Dated.....

UNDERTAKING FOR CARTEL FORMATION

-

We..... Hereby, give an undertaking that as a Registered Vendor on the GeM Portal for manufactures/re-seller for supply of..... will not be a part of cartel with other vendors and will be quoting competitive rates in the instant GeM bid called by the Ftr HQ BSF Rajasthan.

We..... are aware of the fact that the registering authority i.e. GeM portal may de-list the name of our firm from approved vendors on the GeM portal as well as concerned department for two (02) years. If found confirms/declared about such cartel formation from any of the departments and through documents.

-

-

Name of Proprietor :-

Complete Address :-

Seal and Signature

(Authorized Signatory of the firm)

-

APPENDIX -'D'.

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DECLARATION IN RESPECT OF CONFLICT OF INTEREST

Tender No. _____ dated _____

01	Name of Firm	Office Address of firm, phone No., Fax No. & Email ID	Firm's Work s Address as per Vendor Registration, Phone No. Fax No. Email ID	Type of Firm (Sole Proprietorship/Partnership/Limited liability partnership/ Private limited company/ Public limited company)	CIN/LLPIN of Firm	GST Registration No. of the Firm
	(1)	(2)	(3)	(4)	(5)	(6)
02	Name of all Owner(s) / Director(s) of firm	Father's/Husband's name of all Owners/ Director(s)	DIN	Full Residential Address	Aadhar Card of Owner/ Director(s) of firm be Attached	Udyam Registration Certificate No. __, attach a copy
	(1)	(2)	(3)	(4)	(5)	(6)

03. **WE HEREBY DECLARE AND CONFIRM THAT** no bid has been submitted for the quoted item by any other Private Limited or Public Limited Company or Limited Liability Partnership(LLP) or Partnership firm or Proprietor Firm in which any relative of any Director or Partner or Proprietor of Bidder Firm is a Director, Partner or Proprietor. The work "relative" is defined as under: -

The companies Act, 2013 Sec 2(77) "relative" & "MoF Manual for Procurement of Goods (Para 5.1.4) ", with reference to any person, means anyone who is related to another, if:-

- (i) They are member of a Hindu Undivided Family;
- (ii) They are husband and wife; or
- (iii) One person is related to the other in such manner as prescribed below: -

- a) *Father including step-father*
- b) *Mother including step-mother*
- c) *Son including step-son*
- d) *Son's wife,*
- e) *Daughter,*
- f) *Daughter's husband,*
- g) *Brother including step-brother,*
- h) *Sister including step-sister.*

Place:

Date: For _____ (firm name)

Signature of Director/Partner/Proprietor/Authorized Signatory

Name: _____

Designation _____

(With official Stamp)

APPENDIX - 'E'

-

NON-SUBMISSION OF FAKE DOCUMENTS DECLARATION (To be given on Company Letter Head)

Date:

To,

.....

Sub: **NON-SUBMISSION OF FAKE DOCUMENTS DECLARATION**

GeM Bid Reference No: _____ dated: _____

Name of Item: _____

Dear Sir,

We_____ hereby declare that we have not submitted the Fake/Misleading/Manipulated documents from last two financial years from any Government Bids/Tenders including instant bid. In the event that the information is found to be incorrect/untrue or found violated, then your department/ organization shall without giving any notice summarily reject/ terminate our bid, without prejudice to any other rights including the blacklisted for 02 financial years.

(Signature of the Bidder, with Official Seal)

Yours Faithfully

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APPENDIX -'F'

DECLARATION FOR SUCESSFULLY SUPPLYING OF STORES
(To be given on Company Letter Head)

Date:

To,

.....

Sub: DECLARATION FOR SUCESSFULLY SUPPLYING OF STORES

GeM Bid Reference No: _____ dated: _____

Name of Item:- _____

Dear Sir,

We _____ hereby declare that we have successfully supplied the Govt stores without any cancellation of contracts issued by any Government Department from last two financial years. In the event that the information is found to be incorrect/untrue or found violated, then your department/ organization shall without giving any notice summarily reject/ terminate our bid, without prejudice to any other rights including the blacklisted for 02 financial years.

Yours Faithfully,

(Signature of the Bidder, with Official Seal)

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APPENDIX - 'G'

NON-BLACKLISTING DECLARATION
(To be given on Company Letter Head)

Date:

To,

**The Inspector General
Ftr HQ BSF
Rajasthan**

Sub: DECLARATION FOR NON-BLACKLISTING

GeM Bid Reference No: _____ dated: _____

Name of Item:- _____

Dear Sir,

We _____ hereby declare that we are not blacklisted/debarred/banned by any Central Government Consignee/ State Government consignee of India from last two financial years. In the e

vent that the information is found to be incorrect/untrue or found violated, then your department/ organization shall without giving any notice summarily reject/ terminate our bid, without prejudice to any other rights including the blacklisted for 02 financial years.

Yours Faithfully,

(Signature of the Bidder, with Official Seal)

APPENDIX -‘H’.

FINANCIAL STANDING DECLARATION
(To be given on Company Letter Head)

Date:

To,

The Inspector General
Ftr HQ BSF
Rajasthan

Sub: SELF-DECLARATION FOR FINANCIAL STANDING

GeM Bid Reference No: _____ dated: _____

Name of Item:- _____

We, (Name of the Bidder) having registered office at our (Address) represented by Proprietor name do here by solemnly declare that we are neither in any way Insolvent, Bankrupt or Defaulter in terms of rules & regulations presently invoke in India. In case of any such event is found during bids evaluation and award of contract, I/We have no objection if my/our tender is rejected

and without prejudice to any other rights including the blacklisted for 02 financial years.

(Signature of the Bidder, with Official Seal)

Yours Faithfully,

APPENDIX -I'

-

(On Firm's Letter head)

GeM Bid No.....

Dated.....

Name of Item.....

ACCEPTANCE OF TERMS & CONDITIONS OF BID

Dear Sir,

- 1.** I/We have downloaded/obtained the GeM bid document(s) for the above mentioned 'Bid' from the web site(s) namely; GeM portal on date.....
- 2.** I/We hereby certify that I/We have read the entire terms and conditions of the bid documents (including all documents like Specification, Bid detail(s), Buyer Added Bid Specific Terms and Conditions(s), Buyer Added Bid Specific ATC, buyer uploaded ATC documents, Quality Assurance Plan document and etc., and I/We shall abide hereby by the terms/conditions/clauses contained therein.
- 3.** The corrigendum(s), if any, issued from time to time by your department/organization too has also been taken into consideration, while submitting this acceptance letter.
- 4.** I/We hereby unconditionally accept the Bid conditions of above mentioned Bid document(s)/corrigendum(s) in its totality/entirety.
- 5.** I/We do hereby declare that I/We have read and understood the entire specifications/ requirements laid down in the Bid document and have prepared the bid in compliance with the requirements specified in the document.
- 6.** I/We certify that all information and documents furnished by the our Firm is true & correct and in the event that the information is found to be incorrect/untrue or found violated, then your department/organization shall without giving any notice or reason therefore or summarily reject the bid or terminate the contract, without prejudice to any other rights or remedy including the blacklisted for 02 financial years absolutely.

Yours Faithfully,
Authorized Signatory (Signature of the Bidder, with Official Seal)

Appendix - " K "

(To be in the Company letter head)

LAND BORDER SHARING

Certificate regarding compliance of Ministry of Finance, Department of Expenditure Public Procurement Division OM No. F. No. 6/18/2019-PPD dated 23.07.2020.

I certify that (name of the firm) is not covered by the definition of bidder as mentioned at clause of ATC of this tender documents and is thus not required to be registered with the Competent Authority for this purpose.

OR

I certify that (name of the firm) comes within the ambit clause of ATC of this tender and for this purpose, it is registered with the Competent authority. Valid registration certificate No. dated issued by is enclosed

(Strike off the portion not applicable)

Signature of bidder: _____

Name in block letters: _____

Name of Bidder: _____

Full Address: _____

अस्वीकरण/**Disclaimer**

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer ,is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid.All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM.If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension

period has already expired.

4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions.

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---